

Satish Khatik vs Smt. Sanju Khatik on 15 February, 2023

Author: Rohit Arya

Bench: Rohit Arya

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IN THE HIGH COURT OF MADHYA PRADESH
AT GWALIOR

FA No. 1872 of 2019
(SATISH KHATIK Vs SMT. SANJU KHATIK)

Dated : 15-02-2023

Shri Sumit Mishra, learned counsel for the appellant/husband.

Shri S.S. Dhakad, learned counsel for the respondent-wife.

Heard on IA No. 1370/2022, an application under Section 24 of the CPC/ of the Hindu Marriage Act.

This appeal under Section 19 of the Family Court Act read with Section 28 of the Hindu Marriage Act by the appellant/husband is directed against the judgment and decree dated 04/04/2018 passed in Case No. 77-A/18 filed for divorce under Section 13(1)(iA)(ib) of the Hindu Marriage Act, has been dismissed.

During pendency of the suit before the Family Court, respondent/wife was awarded Rs. 1500/- per month as interim maintenance under Section 24 of the Hindu Marriage Act. After termination of proceedings, appellant/husband has stopped making payment, as such. In the aforesaid backdrop, the instant application be considered.

Learned counsel for the respondent/wife submits that respondent/wife has no source of income. She is only dependent on interim maintenance amount. The appellant-husband is having three houses and is engaged in the business of selling onions, therefore, appellant-husband be directed to pay Rs. 10,000/- per month to the respondent-wife so that she may survive and live her life at par with the appellant.

Per contra, counsel for the appellant-husband submits that it is incorrect fact that three houses are in the name of appellant. On the contrary, houses are in the name of his father. He does not have any immovable property in his name. The appellant earns meager amount in his business. His total income is not sufficient to make both ends meet. As such, daughter born out of their wedlock, was living with him. The demand of Rs. Ten Thousand is exorbitant . Appellant can not meet such demand.

Upon consideration of submissions advanced, in our opinion, balance can be struck ordering for Rs Seven Thousand per month payable to the respondent/wife by appellant/husband as interim

maintenance during pendency of the appeal. The said amount shall be paid from the date of filing of appeal without default.

Accordingly, IA stands allowed and closed.

(ROHIT ARYA)
JUDGE

(SATYENDRA KUMAR SINGH)
JUDGE

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